

MASTER SERVICES AGREEMENT (MSA)

This Master Services Agreement is entered into between Acme Corp ("Customer") and Vendor Y ("Provider").

The parties agree that Provider will deliver certain software and support services under this Agreement and any attached Statements of Work (SOWs).

SERVICES AND SERVICE LEVELS

Provider shall make the SaaS platform available to Customer on a 24x7 basis, excluding scheduled maintenance windows.

Support: Provider shall offer email support during business hours and critical incident support on a 24x7 basis.

SERVICE AVAILABILITY AND SLA

Service Level Commitment: Provider will use commercially reasonable efforts to ensure that the Service is available with a Monthly Uptime Percentage of at least 99.5% per calendar month, excluding permitted downtime.

Service Credits: If the Monthly Uptime Percentage falls below 99.5%, Customer shall be entitled to service credits as described in the SLA annex.

LIMITATION OF LIABILITY

Cap on Direct Damages: To the maximum extent permitted by law, the aggregate liability of Provider arising out of or related to this Agreement shall not exceed the fees paid or payable by Customer to Provider for the Service during the twelve (12) months prior to the event giving rise to such claim, capped at INR 1,00,00,000 (Indian Rupees one crore).

Exclusion of Certain Damages: In no event shall either party be liable for any consequential, incidental, special, punitive, or indirect damages, including lost profits or revenue, even if advised of the possibility of such damages.

INDEMNITY AND CURE PERIOD

IP Indemnity: Provider shall defend, indemnify, and hold harmless Customer from and against any third-party claim alleging that the Service infringes any patent, copyright, or trademark of such third party, subject to the limitations in this Agreement.

Cure Period for Breach: If either party materially breaches this Agreement, the non-breaching party may provide written notice describing the breach in reasonable detail. The breaching party shall have fifteen (15) days from receipt of such notice to cure the breach before further remedies are pursued.